

Research gaps in intellectual property rights exploitation in the digital economy

"Identifying research gaps in "intellectual property rights exploitation in the digital economy""
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Research gaps

The literature points to **five main gaps** in research on **intellectual property rights exploitation in the digital economy**: fragmented platform/data governance, unresolved AI and software questions, weak cross-border enforcement analysis, overreliance on narrow methods and proxy measures, and limited coverage of non-Western, SME, and sector-specific contexts. [72] [73] [74] [75] [76] [77]

Gap area	What is missing	Why it matters
Platform and data governance	Clear rules on data ownership, access, enclosure, and licensing across digital platforms remain underdeveloped, especially where platforms use contracts to control publicly available data. [78] [79] [80] [81]	This shapes who can exploit data as an IP-related asset and under what terms. [80] [81]
AI, software, and emerging digital assets	The literature still lacks unified treatment of AI authorship, software protection, NFTs, blockchain-based assets, and synthetic content. [74] [75] [82] [83] [84] [85] [86]	These are central to digital-economy IP exploitation, but existing legal frameworks are described as fragmented or insufficient. [74] [87] [88]
Enforcement and regulation	Cross-border enforcement, platform liability, algorithmic transparency, and the effectiveness of digital rights management remain unevenly studied. [72] [89] [90] [91] [92] [93]	Exploitation often depends on enforcement power, yet current systems are described as inconsistent and poorly coordinated. [72] [90] [93]
Methods and measurement	Many studies rely on patents, self-reports, or narrow keywords; several call for better metrics, longer panels, broader datasets, and causal designs. [94] [95] [96] [97] [98] [99] [100] [101]	This limits confidence in causal claims about how IP exploitation works in digital settings. [101] [102] [103] [104]
Context and generalizability	Evidence is concentrated in China, the EU, and a few sectoral settings; comparative work across countries, industries, and firm types is still thin. [77] [96] [99] [105] [106] [107] [108]	That makes it hard to know which findings are digital-economy-wide versus context-specific. [99] [107] [109]

Most important open questions

- **How do platforms convert data control into IP-like value capture without clear ownership rules?** This remains unresolved because studies show both contractual enclosure and weakly specified data rights, but not a settled framework for allocation. [80] [81] [110]
- **What legal model best handles AI-generated and algorithm-assisted outputs?** Current work emphasizes fragmentation across jurisdictions and uncertainty about authorship, liability, and enforcement. [75] [82] [83] [87] [88]
- **When does stronger protection help innovation, and when does it mainly increase exclusion or rent capture?** The literature repeatedly notes trade-offs but lacks consistent causal evidence across digital settings. [93] [111] [112] [113]
- **How should research measure exploitation beyond patents?** Several studies call for including software copyrights, business model innovation, licensing transactions, and platform-specific data measures. [101] [114] [115] [116]

Bottom line: research on IP rights exploitation in the digital economy is moving from broad legal-description work toward **more precise questions about data control, AI-generated value, and platform power**, but the field still lacks comparative, causal, and cross-sector evidence on how exploitation actually produces value or harm. [72] [76] [78] [109] [117]

Confidence level: **High** — multiple recent reviews, bibliometric studies, and empirical papers converge on the same gap pattern, especially around data governance, AI/software, enforcement, and limited generalizability.

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